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No transition period: what 20 January 2027 means for Turkish machinery exporters

The EU Machinery Regulation changes the evidence behind the CE mark, especially for software, connectivity and machine learning.

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Executive summary

1. Regulation (EU) 2023/1230 replaces the Machinery Directive for machinery placed on the EU market from 20 January 2027. There is no transition period: a machine shipped on or after that date must meet the new Regulation, whatever was true of the same model last year.
2. Most of the familiar logic stays: essential health and safety requirements, a risk assessment, a technical file, an EU declaration of conformity and the CE mark. What changes is the evidence. Safety-related software, protection against corruption of control systems, self-evolving behaviour and digital instructions now have to be documented explicitly.
3. For a Turkish machinery exporter the practical risk is not the law itself but the calendar. Machines on order today may ship after 20 January 2027. The sound question is which product families need new evidence, which need a notified body, and which can be declared on the existing file with modest updates.

What has changed

The Regulation was adopted in 2023 and applies from 20 January 2027. Being a regulation rather than a directive, it applies directly in every EU member state, which removes the national differences some manufacturers relied on. Until 19 January 2027 machinery can still be placed on the market under Directive 2006/42/EC.

Annex I of the Regulation lists categories of machinery considered high-risk. For a small group of them, including safety components and machinery with fully or partially self-evolving behaviour that relies on machine learning to ensure safety functions, the manufacturer can no longer self-certify: a notified body must be involved.

The essential requirements now speak directly about software and connectivity. Control systems must be designed so that a fault in hardware or software, or a reasonably foreseeable malicious attempt by a third party, does not lead to a hazardous situation. Machinery must be protected against corruption, and safety-relevant software and data must be identified and protected.

Instructions may be supplied in digital form, but the customer can still ask for a paper copy at the time of purchase, free of charge, and the instructions must remain accessible for the expected lifetime of the machine. Whoever substantially modifies a machine after it has been placed on the market is treated as its manufacturer for the affected parts.

Industry associations have asked the Commission to align the cybersecurity provisions with the Cyber Resilience Act date of 11 December 2027. When we checked official sources on 24 October 2026 we had not seen an adopted change, so planning should assume 20 January 2027 for the whole Regulation.

Türkiye aligns its machinery legislation with EU rules under the Customs Union. For sales in the home market, follow the national text published by the Ministry of Industry and Technology.

The decision behind the requirement

The Regulation turns three questions that used to be engineering detail into commercial ones. Which of our machines contain safety functions that depend on software or data? Which connect to networks or remote services? Which use, or could be said to use, learning or adaptive behaviour?

The answers decide the conformity route, the cost of the technical file and, for some products, the lead time of a notified body. They also affect contracts: EU distributors and integrators will ask suppliers to confirm conformity under the new Regulation, and some will ask for software bills of materials, update policies and evidence of protection against corruption.

A manufacturer that maps its portfolio early can sequence the work: update the families that ship most often into the EU first, decide where a notified body is unavoidable, and avoid rebuilding files for products that will be retired anyway.

Five common misreadings

“Our machines are CE marked already, so nothing changes.” A CE mark under the Directive does not carry over. Each machine placed on the market from 20 January 2027 must conform to the Regulation.

“Cybersecurity is the Cyber Resilience Act’s problem, not ours.” The Machinery Regulation has its own requirements on protection against corruption and on the safety of control systems. Both regimes can apply to the same product.

“We do not use artificial intelligence.” The relevant question is narrower and more technical: whether any safety function depends on behaviour that changes through learning. The answer should be documented either way.

“Digital instructions mean we can stop printing manuals.” Customers can still request paper at the time of purchase, and the instructions must stay accessible for the machine’s expected lifetime.

“Our EU importer handles compliance.” The manufacturer remains responsible for conformity. Importers must check that the manufacturer has done its part, and they increasingly ask for

the evidence.

Questions for the leadership team

1. Which product families ship into the EU on or after 20 January 2027, including orders already booked?
2. Which of them fall into the high-risk categories of Annex I, and do any require a notified body?
3. Where do safety functions depend on software, firmware, parameters or data?
4. Which machines connect to networks, remote access or cloud services, and how are they protected against corruption?
5. Is any safety-related behaviour adaptive or based on machine learning?
6. Are our technical files and risk assessments current, and who owns them?
7. How will we provide digital instructions and paper copies on request?
8. Which customer contracts reference the Machinery Directive and need updating?

What a good first step produces

A useful first step is a portfolio map: every product family sold into the EU, sorted by shipping date, conformity route and evidence gap. It should leave the leadership team with a prioritised list, a view of where a notified body is needed, and a realistic plan for the files that must be ready first.

Ganrich Advisory runs this as a focused transition review with your engineering and export teams, and coordinates with notified bodies and test laboratories where they are required. We do not certify products. We share the working method in a conversation rather than in print, because it depends on the portfolio.

Start a conversation

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About this paper. This paper reflects official sources checked on 23–24 October 2026. It is general information, not legal, customs, tax or engineering advice. Rules, thresholds and dates change; confirm them against official sources before acting. It describes no client work or results.

Sources: Regulation (EU) 2023/1230 on machinery: eur-lex.europa.eu/eli/reg/2023/1230/oj · European Commission, Machinery: single-market-economy.ec.europa.eu/sectors/mechanical-engineering/machinery_en · EU-OSHA, Regulation (EU) 2023/1230: osha.europa.eu/en/legislation/directive/regulation-20231230eu-machinery

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